

a written commercial promissory note and filing costs, but not as to the interest claimed or attorney's fees.

The interest amount claimed through April 6, 2026, of \$60,352.68, is not supported by admissible evidence. Although a daily per diem of \$122.64 is given, there is no evidence of the date the interest started accruing or how that amount was ascertained. Accordingly, the \$60,352.68 is subtracted from the requested amount to be secured by attachment.

The amount of estimated attorney's fees of \$17,390.79 was also reduced. The declaration of Hrebenar implies that the requested attorney's fees are based on Local Rule 3.4. (Hrebenar Decl. ¶ 16.) However, the amount of attorney's fees based on Local Rule 3.4 amounts to between \$7,929.10 and \$8,532.62, depending on whether the claimed interest is included. Further, the estimated attorney's fees are not supported by a declaration from counsel. Accordingly, the court in its discretion includes estimated attorney's fees of \$8,500.

Accordingly, the amount to be secured by attachment is \$376,844.11.

Plaintiff is to file prefilled right to attach order and writ of attachment after hearing forms (AT-120 and AT-135) within ten (10) days of this court's order.

24CV-03398

Edith Bernal vs Foster Poultry Farms, LLC, et al.

Motion for Terminating and Monetary Sanctions CCP 2031.300 (C), 2023.010 (G), & 2023.030 (A)-(D)

Defendant's motion is **GRANTED IN PART** and **DENIED IN PART**.

The request for judicial notice is **GRANTED**.

Plaintiff Bernal has failed to comply with this court's August 7, 2025, order.

The request for monetary sanction is **GRANTED**.

Monetary sanctions in the amount of \$1,500 are to be paid to Defendant's counsel within fifteen (15) days of this court's order.

Plaintiff is ordered to comply with this court's discovery order entered on August 7, 2025, within ten (10) days of being served with this order.

The request for terminating sanctions is **DENIED WITHOUT PREJUDICE**.

Other than the delay of the case due to Plaintiff's failure to comply with this court's August 7, 2025, order, the court finds that there is no prejudice to Defendant in the absence of the discovery responses that are the subject of the court's prior order. As a result, the request for terminating sanctions is premature, and termination would be punitive rather than remedial. (*Morgan v. Ransom* (1979) 95 Cal.App.3d 664, 669-670.)

However, where lesser sanctions have been ordered, such as an order compelling compliance with discovery requests, and the party persists in disobeying, the party does so “at his own risk, knowing that such a refusal provided the court with statutory authority to impose other sanctions” such as dismissing the action. (*Ruvalcaba v. Government Employees Ins. Co.* (1990) 222 Cal.App.3d 1579, 1583.)

24CV-03606

Bianca Barrera vs Foster Poultry Farms, LLC, et al.

Motion for Terminating and Monetary Sanctions CCP 2030.300 (E), 2023.010 (G), & 2023.030 (A)-(D)

Defendant’s motion is GRANTED IN PART and DENIED IN PART.

The request for judicial notice is GRANTED.

Plaintiff Barrera has failed to comply with this court’s August 7, 2025, order.

The request for monetary sanction is GRANTED.

Monetary sanctions in the amount of \$1,500 are to be paid to Defendant’s counsel within fifteen (15) days of this court’s order.

Plaintiff is ordered to comply with this court’s discovery order entered on August 7, 2025, within ten (10) days of being served with this order.

The request for terminating sanctions is DENIED WITHOUT PREJUDICE.

Other than the delay of the case due to Plaintiff’s failure to comply with this court’s August 7, 2025, order, the court finds that there is no prejudice to Defendant in the absence of the discovery responses that are the subject of the court’s prior order. As a result, the request for terminating sanctions is premature, and termination would be punitive rather than remedial. (*Morgan v. Ransom* (1979) 95 Cal.App.3d 664, 669-670.)

However, where lesser sanctions have been ordered, such as an order compelling compliance with discovery requests, and the party persists in disobeying, the party does so “at his own risk, knowing that such a refusal provided the court with statutory authority to impose other sanctions” such as dismissing the action. (*Ruvalcaba v. Government Employees Ins. Co.* (1990) 222 Cal.App.3d 1579, 1583.)

24CV-04539

Lawler Excavation Pipeline and Utilities, Inc. vs Doug Boyer, et al.

Motion to Consolidate Actions

Defendant Doug Boyer Construction’s motion to consolidate actions for all purposes is GRANTED.

Case Nos. 24CV-06525, 24CV-06543, 25CV-02184, and 25CV-06356 are to be consolidated with 24CV-04539.